THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-IV
CP. (CAA)-76/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

Core Mouldings Private Limited
Having its registered office at C-55,
Preet Vihar, Vikas Marg, Delhi 110092

..... Transferor Company

WITH

Rangoli Resorts Private Limited
Having its registered office at 604, Ashadeep,
9 Haily Road, New Delhi-110001

.... Transferee Company

SECTION 230-232 OF THE COMPANIES ACT, 2013

Order Delivered on: 30.03.2022

CORAM:

SH. DHARMINDER SINGH, HON'BLE MEMBER (J)

MS. SUMITA PURKAYASTHA, HON'BLE MEMBER (T)

ORDER

PER- SUMITA PURKAYASTHA, MEMBER-TECHNICAL

1. This joint petition has been filed by the applicant companies under Sections 230 and 232 of the Companies Act, 2013 read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of approving

the Scheme of Amalgamation, as contemplated between the Transferor Company with Transferee Company.

2. It is represented that the registered office of the Transferor and Transferee Company lies within the jurisdiction of this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing C.A. No. (CAA)25 /ND/2021 was filed by the applicant companies. Based on the averments made in the said application the Tribunal vide order dated 01.17.2021 dispensed the meetings of the equity shareholders, secured creditors and unsecured creditors of the applicant companies.

4. The petitioner company was directed to issue public notices and individual notices to the Regional Director, Official Liquidator and the Income Tax Department respectively. An affidavit dated 23.08.2021 filed by the applicant companies affirming that the petitioner has effected publication in the English daily newspapers "Business Standard" Delhi edition and "Jansatta" Delhi edition both on 26.07.2021 inviting objections if any to the proposed Scheme of Amalgamation. The affidavit further discloses that notice of the proposed scheme had been served on the Registrar of Companies, Regional Director, Northern Region, Income Tax Dept. and the Official Liquidator in compliance with the order of the Tribunal.

5. Pursuant to the Publication in the daily newspapers, for listing of the matter before this Bench, no objector has appeared before us.

6. The replies of the Regional Director, NR, MCA, Report of Official Liquidator as well as the response of the IT Dept. have been filed. It is submitted that based

on the report from Registrar of Companies dated 21.12.2021, no prosecution has been filed nor any inspection or investigation has been conducted in respect of petitioner companies.

The Official Liquidator in its report dated 14.10.2021 has not raised any objections to the sanction of the Scheme.

7. The petitioner has filed affidavit stating that the Income Tax Department has no objection for approval of Scheme. Be that as it may, in order to protect the interest of revenue, it is to be made clear that there shall be no impediment on the power and jurisdiction of the Income Tax Department in recovery of pending Income Tax dues, penalties etc., if any, as provided in the law.

8. The certificate of the statutory auditor of the petitioner company, certifying that the Accounting Treatment in the Scheme is in conformity with the Accounting Standards in terms of Section 133 of the Companies Act 2013, is on record. The Audited Financial Statements for the year 31.03.2020 of the applicant companies have been filed.

9. We have heard the counsels for the petitioners and also considered the representation made by the Regional Director, Northern Region. In the reply filed by the Regional Director (NR), it has been confirmed that the petitioner company is regular in filing their statutory returns. No prosecution has been filed, no complaints are pending and no inspection or investigation has been conducted in respect of the applicant companies.

10. In view of the foregoing, upon considering the approval accorded by the members and creditors of all companies to the proposed Scheme, and no objections being raised by the office of the Regional Director or the Income Tax Dept., there appears to be no impediment in granting sanction to the Scheme.

11. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013. The sanctioned Scheme of amalgamation shall be binding petitioner company and on all their respective shareholders and creditors.

12. The Petitioner shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

13. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

14. This tribunal further order that upon scheme of Amalgamation by way of Merger coming into effect;

a. *The Transferor Company shall stand dissolved without following the process of winding up.*

b. *The entire business, properties and assets of the Transferor Company, be transferred without further act or deed to the Transferee company and accordingly the same shall, pursuant to section 232 of the Act, be transferred to and vest in the Transferee company, but subject nevertheless to all charges now affecting the same;*

c. *All the assets and liabilities including Income Tax and all other Statutory dues, if any, of the Transferor Company, be transferred without further act or deed to the Transferee company and accordingly the same shall pursuant to section 232 of the Act, be transferred to and become the liability and duty of the transferee company;*

d. *All employees of the Transferor Company in service on the effective date shall become the employees of the Transferee Company on and from such date without any break or interruption in service and upon terms and conditions not less favorable than those subsidiary with the Transferor Company on that date.*

e. *That all proceedings now pending by or against the transferor companies, be continued by or against the transferee company;*

15. The petitioners shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the

transferor company and registered with them and shall consolidate the files of the companies, is accordingly duly approved and sanctioned in terms of the above.

16. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

-Sd-

(SUMITA PURKAYASTHA)

MEMBER (T)

-Sd-

(DHARMINDER SINGH)

MEMBER (J)